

The National Board For Wild Life Rules, 2003

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The National Board For Wild Life Rules, 2003

Rule THE-NATIONAL-BOARD-FOR-WILD-LIFE-RULES-2003 of 2003

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The National Board For Wild Life Rules, 2003

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1083.

In exercise of the powers conferred by sub-section (2) and (3) of section 5-A read with section 63 of the Wild Life (Protection) Act, 1972 (

53 of 1972

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement .-(1) These rules may be called The National Board for Wild Life Rules, 2003.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Wild Life (Protection) Act, 1972 (53 of 1972

);

(b)

"National Board" means the National Board for Wild Life constituted under section 5-A of the Act;

(c)

"Chairperson" means the Chairperson of the National Board;

(d)

all other words and expressions used in these rules shall have the meanings respectively assigned to them in the Act.

3.

National Board for Wild Life .-(1) The National Board shall be constituted in accordance with the provisions contained in sub-section (1) of section 5-A of the Act.

(2)

The term of office of the members other than those who are members ex officio shall be for a period of three years.

(3)

The Member of Parliament nominated to the National Board shall cease to be the Member of the National Board on his having ceased to be the Member of Parliament.

(4)

The vacancies referred to in clauses (e), (f) and (v) of sub-section (1) of section 5-A of the Act shall be filled by nomination by the Central Government with the approval of Chairperson.

4.

Meetings .-(1) The National Board shall ordinarily meet once in a year at a place to be decided with the approval of the Chairperson.

(2)

The Member-Secretary shall prepare agenda items for the meetings, obtain approval of the Chairperson and circulate it to all members at least fifteen days prior to the date of such meeting.

(3)

The Member-Secretary shall prepare the minutes of the meeting and circulate it to all members within thirty days of the meeting after obtaining approval of the Chairperson.

(4)

The Member-Secretary shall also initiate follow up action on the decisions of the National Board.

5.

Removal from the National Board .-The Central Government may, with the prior approval of the Chairperson, remove any member of the National Board appointed under clauses (e), (f) and (v) of sub-section (1) of section 5-A of the Act, if-

(a)

he is of unsound mind and stands so declared by a competent Court; or

(b)

he is an undischarged insolvent; or

(c)

he is convicted of any offence including moral turpitude; or

(d)

his conduct is found to be unbecoming of a member.

6.

Disclosure of interest by members .-If any member of the National Board or his family member has any interest in a proposal submitted for consideration of the National Board, the member shall disclose the extent of his interest in the proposal.

7.

Presiding over the meetings of the National Board .-(1) The Chairperson or in his absence the Vice-Chairperson shall preside at every meeting of the National Board.

(2)

In the absence of both the Chairperson and the Vice-Chairperson, such other member present as is decided by the National Board shall preside over the meeting.

8.

Quorum .-(1) The quorum necessary for the transaction of business at a meeting of the National Board shall be one-half of the total number of members.

(2)

If at any time there is no quorum, the Chairperson or the person presiding over a meeting shall adjourn the meeting until there is a quorum.

9.

Invitees to the National Board meetings .-The Chairperson of the National Board may invite any person or persons having experience in the wild life conservation to attend any meeting of the National Board.

10.

Record of business .-(1) The record of business transaction at every meeting of the National Board shall be prepared by the Member-Secretary for approval by the Chairperson or the Member presiding at such meeting.

(2)

When any business is transacted by circulation of papers, the Member-Secretary shall prepare a record of the business so transacted for approval by the Chairperson of the National Board permitting the circulation.

(3)

The record of business transacted at every meeting of the National Board shall be approved and signed by the Chairperson or the Vice-Chairperson or the member presiding at such meeting, and the approved record of business shall be circulated to all the members.

(4)

All records shall be maintained by the Member-Secretary of items of business transacted by the National Board or the committees, sub-committees or sub-groups thereof.

11.

Appointment of Committees .-(1) The National Board may, constitute a Standing Committee and such other committees or study groups, as may be necessary, in accordance with the provisions contained in section 5-B of the Act.

(2)

The National Board shall determine the terms of reference, tenure, membership and other related aspects as may be necessary in respect of the committees constituted under sub-rule (1) of this rule.

12.

Travelling and other allowances to members of the National Board and its committees .-(1) A member of the National Board or any committee other than members ex officio , shall be entitled to receive, in respect of any journey performed by him for the purpose of attending a meeting of the National Board or of a duly constituted committee thereof or for the purpose of discharging any duty assigned to him by the National Board or the committee concerned, travelling allowances and daily allowances at the rates as are admissible to the Group "A" officers of the Central Government for the time being in force.

(2)

No travelling allowance or daily allowance shall be allowed to a member of the National Board or of any committee unless he certifies that he has not drawn any travelling or daily allowance from any other source in respect of the journey and halt for which the claim is made.

(3)

The travelling allowance shall be payable from the usual place of residence of a member of the National Board or any of the committee to the place of the meeting or the place where he has gone to attend to any business of the National Board and back to his place of residence.

(4)

In special circumstances, the Chairperson may grant travelling allowance from the places other than usual place of residence of a member.

13.

Interpretation of rules .-Where any doubt arises as to the interpretation of these rules, interpretation shall be referred to the Central Government for its decision.

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